

February 23, 2026

Andrew S. Johnston
Executive Secretary
Maryland Public Service Commission
William Donald Schaefer Tower
6 St. Paul Street, 16th Floor
Baltimore, Maryland 21202

Re: Case No. 9761; Proposed Distribution System Support Services Pilots Plans—DRIVE ACT Implementation

Dear Mr. Johnston,

Vehicle-Grid Integration Council (“VGIC”)¹ respectfully provides its comments in response to the Maryland Public Service Commission’s (“Commission”) January 21, 2026 Notice of Hearing (“Notice”) in Case No. 9761, regarding DRIVE Act Implementation.

I. Introduction

VGIC is a 501(c)(6) membership-based advocacy organization committed to advancing the role of vehicle-grid integration (“VGI”) through policy development, education, and research. VGIC supports the transition to decarbonized transportation and electric sectors by ensuring that the value from flexible EV charging and discharging is recognized, compensated, and aligned with a more reliable, affordable, and efficient electric grid.

VGIC’s comments focus specifically on the bidirectional charging system components of the utilities’ revised Distribution System Support Services (“DSSS”) Pilot proposals. While the pilots appropriately include bidirectional charging system participation, it is not currently structured as the centerpiece of the programs. Given the DRIVE Act’s intent to position Maryland as a leader in unlocking EVs as grid resources, VGIC’s recommendations are aimed at ensuring that bidirectional charging moves from a modest pilot element to a scalable and

¹ VGIC member companies and supporters include American Honda Motor Co., Inc., Ford Motor Company, General Motors, Nissan Group of North America, Bidirectional Energy, BMW of North America LLC, bodeEV, ChargePoint, ChargeScape, Codibly Inc., Critical Loop, dcbel, Eaton Corporation, EnergyHub, EV.Energy, Fermata Energy, Gravity Inc., Mercedes-Benz Research & Development North America, Inc., Orange Charger, Inc., Rivian, Stellantis, SWITCH Energy Inc., Tesla, The Mobility House, Toyota Motor North America, Inc., UL Solutions, WeaveGrid, Clean Power Alliance, Los Angeles Department of Water and Power, Marin Clean Energy, San Diego Community Power, and Sacramento Municipal Utility District. The views expressed in these Comments are those of VGIC, and do not necessarily reflect the views of all individual VGIC member companies or supporters. (<https://www.vgicouncil.org/>)

strategically integrated component of Maryland’s long-term peak management strategy. Our recommendations are summarized below:

1. **Enable Grid-Parallel Export at Program Launch:** The Commission should require grid-parallel export from program launch, as Maryland’s robust interconnection rules ensure safety and reliability.
2. **Ensure Funding Scales with Market Growth:** Program funding should scale with participation so the incentive framework does not constrain growing bidirectional charging system adoption.
3. **Include Commercial and Fleet Participation:** Utilities should include commercial fleets, especially electric school buses, in their DSSS programs to capture scalable and dispatchable bidirectional charging system capacity.
4. **Structure Reporting and Stakeholder Engagement to Support Transition to a Permanent Program:** Reporting and ongoing stakeholder engagement should support timely pilot refinement and a seamless transition from pilot to permanent program.

The following section expands on these recommendations, providing a clear justification to ensure that the DSSS pilot programs maximize the full ratepayer benefits that EVs can provide as transportation electrification accelerates in Maryland.

II. Comments

VGIC appreciates the opportunity to comment on the revised DSSS Pilot proposals submitted by Baltimore Gas & Electric Company, Pepco, Delmarva Power, and Potomac Edison (collectively, the “Utilities”).

VGIC supports approval of the revised Utilities’ proposals with targeted modifications. The DRIVE Act is intended to position Maryland as a national leader in unlocking electric vehicles as grid resources at scale. The Utilities’ revised filings represent meaningful progress toward that goal. However, several refinements are critical to ensure that the pilots fully align with legislative intent and do not inadvertently delay scalable bidirectional charging system deployment.

1. Grid Parallel Operations with Export Should be Supported at Program Launch

Grid parallel operations with export capability should not be deferred, as safety, reliability, and certification frameworks have already been addressed through a robust stakeholder process and subsequent Commission adoption of updated interconnection rules. Maryland has already

resolved the central technical, safety, and certification questions associated with bidirectional charging system deployment. Through codified revisions to COMAR 20.50, the Commission established comprehensive bidirectional charging system interconnection pathways covering both direct current (“DC”) and alternating current (“AC”) architectures, including certification options under UL 1741 SB for Vehicle-to-Grid DC (“V2G-DC”) systems and the emerging UL 1741 SC / SAE J3072 and UL 1741 SB CRD for V2G-AC systems. These rules provide clear, industry-aligned standards for safe, grid-parallel operation of bidirectional charging systems, including those exporting to the grid.

VGIC recognizes that Utilities are at different stages in deploying utility Distributed Energy Resource Management Systems (“DERMS”) and Grid-Edge DERMS platforms. BGE is actively implementing phased utility DERMS capabilities; Pepco and Delmarva outline a roadmap that initially relies on a Grid-Edge DERMS vendor; and Potomac Edison proposes relying entirely on a third-party edge-DERMS platform during the pilot. These differing deployment timelines reflect legitimate IT modernization pathways.

However, these varying DERMS maturity levels should not be a barrier to allowing grid-parallel operations with export from bidirectional charging systems at the outset of the pilots. Full Utility DERMS deployment is not a prerequisite for safe, measured, and compensated exports.

Most notably, the Sunrun-Ford V2X Pilot has been operating for multiple seasons under current architecture within the BGE service territory.

Meanwhile, in other jurisdictions, large-scale grid services have been unlocked using event-based dispatch with existing metering and third-party platform integrations, rather than waiting for fully mature utility DERMS. For example, California’s Emergency Load Reduction Program (“ELRP”) pays customers for both load reductions and EV exports during grid emergencies through day-ahead or real-time event notifications, relying on existing interval metering and utility coordination rather than requiring a fully deployed DERMS platform. Another California program, the Demand Side Grid Support Program: Option 3, directs aggregators to discharge bidirectional charging systems when wholesale market prices reach a certain threshold. Aggregators then submit device-level dispatch data to the program administrator to verify performance during events. This passive dispatch approach enabled an incredibly rapid program launch without relying on a DERMS provider. Meanwhile, California’s Self-Generation Incentive Program uses a greenhouse gas emissions signal to coordinate battery charging and discharging without a centralized DERMS platform.

Similarly, Massachusetts’ Connected Solutions program is a bring-your-own-device virtual power plant that rewards customers for enrolling battery storage and V2X in aggregated grid services. While utilities use DERMS-like platforms to manage device enrollment and dispatch,

Connected Solutions operates at scale, even though utilities have yet to *fully* integrated these capabilities into their core operations systems.

Together, these programs demonstrate that export capability can be enabled early via simpler operational mechanisms, and that resources can be brought into evolving DERMS and VPP architectures over time, as the Utilities grow their own capabilities. Other jurisdictions have demonstrated that bidirectional charging systems and distributed energy resources can be unlocked effectively using these types of simpler programmatic structures during early market phases.

Maryland can adopt a similar phased approach. During the pilot period, utilities can rely on a mix of:

- Day-ahead event notifications,
- Aggregator coordination,
- Device-level measurement and verification,
- Standardized performance settlement processes, and
- Passive dispatch price triggers.

Therefore, VGIC strongly recommends the Utilities be directed to launch the DSSS pilots with explicit support of grid-parallel operations and exports for approved interconnection applications from the program's inception. Additionally, bidirectional vehicles and chargers, operating as load-only resources and/or backup-only resources, should be permitted to energize and operate in load-only mode initially, with a seamless transition to grid-parallel with export once customers enroll and satisfy existing interconnection requirements (including submitting an interconnection application). This approach is consistent with the interconnection rules recently codified by the Commission in COMAR 20.50. No additional procedural barriers beyond the codified interconnection framework should be imposed.

2. Funding Should Scale if Market Adoption Exceeds Forecasts

The filings generally forecast modest participation of bidirectional charging resources during the pilot term. However, the market is moving quickly. Bidirectional charging is transitioning from limited product testing to fully commercial, mass-market offerings.

Major automakers, including Ford, General Motors (Chevrolet, Cadillac, and GMC), Nissan, Kia, Volvo, and Polestar are already marketing grid-parallel and grid-supportive features. Tesla recently launched its *Powershare Grid Support* offering in Texas, marking the first large-scale vehicle-to-grid offering from a major automaker leveraging the lower-cost AC-based architecture. Tesla has also detailed its plans to launch the same offering in California with all three major investor-owned utilities. Additional announcements from Toyota, Honda/Acura, Rivian, Lucid, BMW, Volkswagen, and Stellantis signal that bidirectional functionality will be

available across a near-universal suite of light-duty EV platforms within the next two to three years.

On the charger side, dcbe1, Wallbox, Ford, GM Energy, and Tesla already offer bidirectional solutions, while Emporia, ChargePoint, Autel, SolarEdge, and Enphase have announced forthcoming products. For example, Enphase has detailed its plans for volume production of its IQ Bidirectional EV Charging Platform beginning in late 2026. These developments mean that the bidirectional charging pilot program period will coincide with substantially broader availability of bidirectional vehicles and charging equipment in Maryland.

The Commission should require utilities to:

- Clarify that funding may be reallocated across pilot pathways if participation exceeds forecasts;
- Identify a streamlined mechanism for requesting incremental budget authorization for cost-effective pilot expansion; and
- Avoid enrollment caps that constrain growth below market demand.

Maryland's incentive framework should not become a bottleneck amid accelerating product availability and consumer interest in bidirectional charging technology, as this would undermine the DRIVE Act's clear vision and purpose.

3. Include Commercial and Fleet Bidirectional Charging Participation

All three Utilities appropriately allow commercial customers to participate in the DSSS pilots through aggregated resource pathways. However, the proposals do not explicitly reference commercial fleet bidirectional charging participation, despite the significant potential these resources represent.

Among commercial segments, electric school buses represent the most mature and deployment-ready bidirectional charging opportunity today. Hundreds of electric school buses are already deployed nationwide, with many projects actively demonstrating grid export functionality. School bus duty cycles, morning and afternoon routes with long mid-day and overnight dwell times, align exceptionally well with distribution peak support and system capacity needs. Additionally, school buses are centrally managed, predictably pre-scheduled, and located at depots where interconnection can be strategically planned.

Importantly, the technology ecosystem supporting school bus bidirectional charging systems is no longer experimental. Multiple OEMs offer electric school buses with bidirectional functionality, and several commercially available DC high-power bidirectional chargers are already deployed in pilot and commercial projects. Interoperability between buses and EVSE has advanced significantly in recent years, with increasing use of the standardized communication

protocols for bidirectional power transfer outlined in ISO 15118-20. This makes school buses one of the lowest-risk, highest-confidence segments for meaningful bidirectional charging export during the pilot period.

Given this maturity, the DSSS program proposals should clarify how electric school buses and other depot-based fleets (e.g., refuse) will be recruited. This may include coordination with school districts, alignment with make-ready investments, and streamlined processes for enabling grid-parallel export at fleet depots.

4. Structure Reporting and Stakeholder Engagement to Support Transition to a Permanent Program

Quarterly reporting and regular stakeholder engagement is appropriate for pilots of this scale, but these functions should serve a dual purpose: informing near-term program refinement and laying out the transition to permanent programs. Each of the Utilities contemplates evaluating the pilot before determining whether and how to transition to a longer-term offering. To ensure that this transition is seamless, and not delayed by insufficient data, reporting requirements should be explicitly structured to support program evaluation and stakeholder engagement from the outset.

Reports should go beyond enrollment totals and aggregate peak reductions. VGIC recommends that each utility provide detailed data on export event frequency and duration, device-level performance relative to nominated capacity (e.g., average, standard deviation), opt-out rates, communications reliability, geographic distribution of participants relative to targeted feeders, and other metrics that may support assessment of benefits and costs. These metrics will allow the Commission to assess not only whether the pilots functioned operationally, but whether bidirectional charging systems delivered measurable distribution and system value consistent with the DRIVE Act's intent. Transparent reporting will further clarify what refinements are needed before transitioning to a permanent structure.

Importantly, the pilot-to-program pathway should not depend solely on a final report at the end of the two-year term. Instead, the Utilities should use interim reporting milestones to identify program design adjustments, necessary tariff modifications, and long-term funding requirements. By the midpoint of the pilot, utilities should be directed to provide preliminary recommendations for permanent program structure, including compensation mechanisms, eligibility criteria, and operational protocols. If there is positive consensus during these periodic reviews, then pathways to lock-in participation agreements beyond the pilot period should be made available to customers. This forward-looking approach will reduce regulatory lag and provide greater certainty to customers and aggregators considering participation.

Finally, VGIC encourages structured stakeholder check-ins at least quarterly to review performance data and discuss program refinements. A transparent and iterative feedback process will allow lessons learned during the pilot to be incorporated throughout the pilots rather than deferred until the conclusion. These recommendations will allow Maryland to move from pilot demonstration to a large-scale, cost-effective bidirectional charging program without creating a participation cliff or sacrificing critical market momentum.

III. Conclusion

Maryland holds a unique position nationally as the first state to codify comprehensive bidirectional charging system interconnection rules covering both DC and AC architectures. That regulatory certainty sends a powerful market signal to industry stakeholders that VGIC represents. By accelerating export enablement, clarifying funding scalability, including fleet participation, and requiring proactive pilot-to-program transition planning, the Commission can ensure these pilots reflect the full ambition of the DRIVE Act.

VGIC respectfully urges the Commission to approve the revised DSSS Pilot proposals with the modifications described above. With these targeted refinements, the pilots can unlock meaningful peak reduction, accelerate bidirectional charging deployment, and position Maryland as the leading state in realizing the transformative potential of electric vehicles as grid assets.

VGIC appreciates the Commission's continued leadership and looks forward to ongoing engagement on DRIVE Act implementation.

Sincerely,

A handwritten signature in black ink, appearing to read "Steve Letendre", with a stylized, cursive script.

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